

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN MATEO,

Petitioner

VS.

GIANCARLO MALLARI ROMERO,

Respondent

) Case Number: FCS-24-356843

) Hearing Date: September 15, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FRO ORDER : TEMPORARY EMERGENCY ORDER, CHILD CUSTODY, VISITATION
(PARENTING TIME), ORDER SHORTENING TIME

TENTATIVE RULING

The parties are ordered to appear on 9/15/2026 at 9am in Department 404 in-person or by Zoom video. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Respondent Giancarlo Mallari Romero (Father) and Other Parent Madilyn Cabico Domingo (Mother) have one minor child together, Giana (DOB 3/10/2021, age 5). Father lives in San Francisco; Mother lives in Belmont. There are no custody orders.
- 2) On for hearing is Father's 7/10/2026 ex parte request in which he seeks joint legal and physical custody of Giana, with parenting time for Mother from Friday to Sunday evening. He states he has been Giana's primary caregiver and has taken care of her daily needs. He describes an incident during which he gave a "light tap" to Giana's head on 6/25/2026 and his mother (the paternal grandmother) reported the incident to Mother. Thereafter, Mother told Father that she would be caring for Giana because she did not believe Giana was safe in Father's care. Father

1 states he "regrets using any physical discipline" and will never do so again, but that Giana is safe
2 with him and needs to be returned to his care so that she can attend Kindergarten in San
3 Francisco, receive the IEP services that she needs, and attend dental and other appointments. The
4 Court set the matter for hearing on shortened time for 9/15/2026 and ordered the parties to attend
5 mediation on 9/1/2026.

6 3) Father appeared at mediation; Mother did not. Mother has not filed a responsive declaration.

7 **B. Findings and Orders**

8 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
9 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
10 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
11 child is the United States.

12 **2) The parties are ordered to appear in person or via Zoom video on 9/15/2026 at 9am in**
13 **Department 404.**
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